

Discrimination found	56	47	40
Discrimination not found	87	87	55
Dismissal on a preliminary basis (including following summary hearings)	871	699	786
Deferrals	191	252	229
*Other procedural issues	525	424	358
Reconsideration	151	142	140
Breach of settlement decision	24	5	12

*Includes instances such as jurisdictional issues, where the matter was dealt with by another court, the granting or denying of adjournments or no response was filed.

The HRTO also issued 1,794 Case Assessment Directions dealing with various procedural issues.

Transitional Applications and Commission Referred Complaints

June 2008 amendments to the *Code* established the new human rights system and included a mechanism for dealing with complaints still pending at the Ontario Human Rights Commission. For a period of one year, the complainant could bring the complaint to the HRTO by filing an application under section 53 of the *Code*. The HRTO received almost 2,000 such applications. As well, the Commission continued to refer complaints to the HRTO until December 31, 2008.

Most of the Transition Applications and Commission Referred Complaints have been resolved. At the end of fiscal 2013-2014, the open caseload was:

Transitional Applications

16 open cases:

- 2 were pending final decision
- 12 were deferred pending the outcome of some other process
- 1 was at the hearing stage
- 1 was combined with s.34 applications

Commission Referred Complaints

2 open cases:

- 1 for monitoring
- 1 group of cases being case managed for outstanding issues (special diet files processed as one case)

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LANDLORD AND TENANT BOARD

Legislative Authority: LTB

The Landlord and Tenant Board (LTB) is established under the *Residential Tenancies Act (RTA)* to hear and decide applications relating to residential tenancies. Mediation of disputes is provided with the consent of the parties.

The LTB also provides information to landlords and tenants about their rights and obligations under the RTA.

Resolving disputes

- **Adjudication**

Subsection 168(2) of the RTA provides that the LTB has exclusive jurisdiction to determine all applications under the act, while section 174 provides the LTB with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction.

Pursuant to section 183 of the RTA, the LTB strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

Hearings are held at the LTB's eight offices as well as at a number of other locations across the province.

- **Mediation**

Section 194 of the RTA allows the LTB to mediate disputes, if both parties agree. LTB mediators are available to meet with parties to try to help them reach an agreement.

Providing Information

Section 177 of the RTA requires the LTB to give information to landlords and tenants about their rights and obligations. The LTB fulfills this mandate by providing counter-service in its offices across the province, and through a website and a call centre. LTB handled 293,351 telephone calls in 2013-2014.

Operational Highlights: LTB

The LTB developed and implemented several initiatives to support the provision of fair, effective, timely and accessible dispute resolution for the residential housing sector in Ontario. LTB initiatives focused on the areas of tribunal modernization, dispute resolution and external service delivery.

Tribunal Modernization

LTB is expecting the proclamation of Bill 140 in 2014/15. With a few exceptions, the bill requires LTB to serve the Notice of Hearing package on the parties. Although the bill is not yet law, the LTB is preparing by updating its rules and procedures and application forms.

Dispute Resolution

Bill 14, which was passed by the Legislature on September 26, 2013, provides for most co-op eviction disputes to be dealt with by the LTB. Bill 14 also introduced "fee waivers" which permit the LTB to waive or defer fees for low-income individuals. In anticipation of the bill being proclaimed in spring 2014, the LTB is developing new rules, practice directions, forms and procedures.

The LTB has continued to deal with most landlord applications for non-payment of rent (L1s and L9s) on specific days at each office. As a result, time to hearing has decreased and application scheduling has become more predictable.

External Service Delivery

LTB is developing an electronic filing system that will provide clients with a new, secure and simple online filing solution. It will allow clients to file applications more quickly, at any time and from anywhere. Implementation is anticipated for early 2015.

The LTB renewed its focus on stakeholder engagement and finalized the terms of reference for the newly-formed Practice Advisory Committee (PAC) which includes representatives from the Advocacy Centre for Tenants Ontario, the Federation of Rental Housing Providers of Ontario, the Ontario Non-Profit Housing Association, and

the Co-operative Housing Federation. The PAC will allow stakeholders to chair and direct the discussion.

Service Standards: LTB

All applications, except those dealing with an above guideline increase (AGIs) and an application to vary the amount of the reduction (A4s), will have a hearing scheduled within 25 business days 80% of the time.*

Result: 90%

Orders for all applications, except those dealing with an above guideline increase (AGIs) and an application to vary the amount of the reduction (A4s) will be issued within 5 business days 80% of the time.*

Result: 88%

***Note:** LTB's case management system reports in business days.

Statistics/ Commentary: LTB

In 2013-14, the LTB received 81,748 applications. This is a decrease of 443 applications compared to 2012-2013.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 91 per cent of applications filed by landlords and nine per cent filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, 64.6 per cent were for termination of tenancy because of arrears of rent.

Application Resolution

For the fiscal year 2013-2014, the LTB received 81,748 applications and resolved 82,126 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2014 the number of unresolved RTA applications was 8,497.

Application Receipts and Resolutions	2013-2014	2012-2013	2011-2012
Applications received	81,748	82,192	81,084
Applications resolved	82,126	80,261	81,032
Outstanding at end of fiscal year	8,497	9,580	10,187

Landlord Applications by Type

Case Type	Application Description	2013-2014	2012-2013	2011-2012
A1	Determine Whether the Act Applies	69 (0.1%)	62 (0.1%)	50 (0.1%)
A2	Sublet or Assignment	241 (0.3%)	237 (0.3%)	234 (0.3%)

A3	Combined Application (usually includes an L1)	4,209 (5.7%)	3,936 (5.2%)	3,736 (5.1%)
A4	Vary Rent Reduction Amount	134 (0.2%)	209 (0.3%)	106 (0.1%)
L1	Terminate & Evict for Non-Payment of Rent	52,832 (71.2%)	54,777 (73.0%)	54,847 (74.2%)
L2	Terminate for Other Reasons & Evict	7,312 (9.9%)	7,102 (9.5%)	6,867 (9.3%)
L3	Termination - Tenant Gave Notice or Agreed	1,179 (1.6%)	1,225 (1.6%)	1,263 (1.7%)
L4	Terminate the Tenancy - Failed Settlement	5,955 (8.0%)	5,549 (7.4%)	4,905 (6.6%)
L5	Rent Increase Above the Guideline	438 (0.6%)	296 (0.4%)	252 (0.3%)
L6	Review of Provincial Work Order	3 (0.0%)	11 (0.0%)	13 (0.0%)
L7	Transfer Tenant to Care Home	4 (0.0%)	0 (0.0%)	1 (0.0%)
L8	Tenant Changed Locks	21 (0.0%)	45 (0.0%)	21 (0.0%)
L9	Application to Collect Rent	1,800 (2.4%)	1,620 (2.2%)	1,664 (2.3%)
Total		74,197	75,069	73,959

Tenant Applications by Type

Case Type	Application Description	2013-2014	2012-2013	2011-2012
A1	Determine Whether the Act Applies	23 (0.3%)	30 (0.4%)	36 (0.5%)
A2	Sublet or Assignment	46 (0.6%)	45 (0.6%)	57 (0.8%)
A3	Combined Application	1,680 (22.3%)	1,342 (18.9%)	1,435 (20.2%)
A4	Vary Rent Reduction Amount	1 (0.0%)	1 (0.0%)	1 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	663 (8.8%)	618 (8.7%)	578 (8.1%)
T2	Tenant Rights	3,600 (47.7%)	3,676 (51.6%)	3,548 (49.8%)
T3	Rent Reduction	51 (0.7%)	58 (0.8%)	65 (0.9%)

T4	Failed Rent Increase Above Guideline	4 (0.0%)	1 (0.0%)	1 (0.0%)
T5	Bad Faith Notice of Termination	156 (2.1%)	152 (2.2%)	139 (2.0%)
T6	Maintenance	1,318 (17.5%)	1,198 (16.8%)	1,264 (17.7%)
T7	Suite Meters	9 (0.0%)	2 (0.0%)	1 (0.0%)
Total		7,551	7,123	7,125

LTB Regional Activity

	Central	East	North	South	South-west	GTR East	GTR North	GTR South
Received	8,820	8,329	3,713	11,392	13,488	11,191	13,112	11,703
Resolved	8,904	8,267	3,720	11,346	13,146	11,509	13,225	12,009
Outstanding	867	875	360	960	1,482	1,071	1,470	1,412

Mediation

The LTB employs mediators throughout the province to provide mediation services where both parties involved in an application are interested in working together to resolve the issues in dispute. In the 2013-2014 fiscal year, approximately 36 per cent of all applications where both parties attended the hearing were successfully resolved through mediated agreements and/or consent orders* arrived at during mediation.

*Like a mediated agreement, both parties agree to the terms of consent orders. Unlike mediated agreements, however, the terms of a consent order are limited to the scope of the application and they are enforceable in the same way as any other LTB order for eviction or money owed.

Review and Appeal Statistics

A party to an application may ask for a review of an LTB order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings. This includes circumstances where a party was not reasonably able to participate in the proceeding.

In 2013-2014, the LTB received 2,376 requests for review, three per cent of the total number of applications received. Of the review requests received, 881 were sent to hearing.

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ONTARIO SPECIAL EDUCATION TRIBUNALS

Legislative Authority: OSETs

The legislative mandate of the Ontario Special Education Tribunals (OSETs) is found in section 57 of the